

Neeluri Jahnvi vs Neeluri Harinath on 26 February, 2020

Author: G. Shyam Prasad

Bench: G. Shyam Prasad

THE HON'BLE SRI JUSTICE G. SHYAM PRASAD

Tr.C.M.P No.112 OF 2019

ORDER:

This is a petition filed under Section 24 of CPC by the petitioners seeking for transfer of OP No.106 of 2018 from the Court of Senior Civil Judge, Dharmavaram, Ananthapur District to the Family Court, Kadapa where M.C.No.44 of 2018 is pending.

2. Heard the learned counsel for the petitioners.

3. Learned counsel for the petitioners submits that the 1st petitioner is the wife of the respondent, who has filed M.C.No.44 of 2018 on the file of Family Court, Kadapa, where she is residing. He further submits that the 1st petitioner has 9 months old child (2nd petitioner), and she is unable to go to Dharmavaram, where the respondent/husband has filed OP No.106 of 2018 on the file of Senior Civil Judge, Dharmavaram, Ananthapur District. Hence, the petitioner sought for transfer of the said OP No.106 of 2018 from Dharmavaram Court to Kadapa Court, where she has filed M.C.No.44 of 2018.

4. Learned counsel for the petitioners further submits that the parents of the 1st petitioner have given Rs.10,00,000/- as dowry to the respondent and after marriage the respondent harassing her and therefore she is living separately at her parents' house and thereafter she filed M.C.No.44 of 2018 on the file of Family Court, Kadapa, under Section 125(1) Cr.P.C. seeking for maintenance of Rs.35,000/- per month to her and Rs.8,000/- per month to her child. During the pendency of MC No.44 of 2018, the respondent has filed OP No.106 of 2018 on the file of Senior Civil Judge, Dharmavaram, Ananthapur, under Section 9 of Hindu Marriage Act, 1955 seeking for restitution of conjugal rights of the 1st petitioner/wife and the respondent/husband.

5. On consideration of submissions of learned counsel for the petitioners and since notice has been served to the respondent, but none appeared on his behalf, except filing of the affidavit, there is no other material on record to show that the contentions raised in the petition have supported by any proof. Therefore there are no grounds to transfer the OP No.106 to 2018 to Kadapa.

6. This is a case where the respondent/husband has filed OP for restitution of conjugal rights and the petitioner/wife is living separately from her husband and seeking for maintenance. There is every possibility of settlement of the matter between the parties if the learned counsel on both sides would take initiative and try to bring amicable settlement between the parties. The trial Court who is

taking up the matter of Maintenance Case and also Divorce petition for restitution of conjugal rights may refer the matter to the Mediation Centre for settling the matter and the Mediation Centre either at Kadapa or at Dharmavaram may call both parties and try to reconcile the matter between them as the dispute is only at the initial stage.

7. It is made clear that whenever the petitioner/wife files a complaint before the police, the same shall be considered by the police, in accordance with law, and give protection to the petitioner/wife.

8. With these observations, finding no merit in the instant petition, as there are no substantial grounds for transfer of the case, the same is dismissed accordingly. No order as to costs.

Miscellaneous petitions, if any, pending in this case shall stand closed.

G. SHYAM PRASAD, J Date : 26-02-2020 Gvl THE HON'BLE
SRI JUSTICE G. SHYAM PRASAD Tr.C.M.P No.112 OF 2019 Dt.26-02-2020 Gvl